

24STCV27800 24STCV27800

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C08%2F05%2F2026

Source SHA-256: 4233333419a7ed9c27f1daf5c3ed5e4eff5b279689e9456c95592bf60937a679

Case Number: 24STCV27800 Hearing Date: August 5, 2026 Dept: 224

Sedlar v. Ujwal Pratap et al.,

TENTATIVE RULING

ANALYSIS

Background

On May 23, 2024, Plaintiff Monique Sedlar ("Plaintiff") filed this action, alleging that she was violently assaulted and injured by Defendant Ujwal Pratap in her apartment. The original complaint alleged causes of action for assault, battery, intentional infliction of emotional distress ("IIED"), negligent infliction of emotional distress ("NIED"), false imprisonment, and gender violence.

On November 19, 2025, Plaintiff filed a Motion for Leave to file her First Amended Complaint, seeking to: (a) delete her false imprisonment claim; (b) name two previously unnamed Doe defendants (Sai Kumar Pratap and Anitha Rani Paratap), and (c) add several claims (trespass to real property, conversion, trespass to chattels, violation of the Tom Bane Civil Rights Act (the "Bane Act"), and IIED theory based on post-incident misconduct). The Doe defendants opposed the motion.

On March 27, 2026, the Court granted the motion in part. The Court denied Plaintiff's requests to delete the false imprisonment claim and assert an IIED claim against the Doe defendants. The Court otherwise granted the motion.

On April 6, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") against Ujwal Pratap, Sai Prathap, Anitha Prathap, and Does 1 through 50, inclusive, as follows.

1. Assault (against Ujwal Pratap)
2. Battery (against Ujwal Pratap)
3. IIED (against Ujwal Pratap)
4. NIED (against Ujwal Pratap)

5. Gender Violence (against Ujwal Pratap)
6. Trespass to Real Property (against Sai Kumar Pratap and Anitha Rani Pratap)
7. Conversion (against Sai Kumar Pratap and Anitha Rani Pratap)
8. Trespass to Chattels (against Sai Kumar Pratap and Anitha Rani Pratap)
9. Violation of the Bane Act (against Sai Kumar Pratap and Anitha Rani Pratap)

On June 4, 2026, Sai Kumar Pratap and Anitha Rani Pratap (collectively, “Defendants”) filed the instant demurrer to sixth through ninth causes of action (“COAs”). Defendants also filed the instant motion to strike portions of the FAC.

On July 17, 2026, Plaintiff filed oppositions to the demurrer and motion to strike.

On July 29, 2026, Defendants filed their replies.

Jury trial is set for February 1, 2027.

Legal Standard

A party may demur a pleading on the ground that “the pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) “The rules by which the sufficiency of a complaint is tested against a general demurrer are well settled. We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Guclimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38 [internal quotes omitted].)

A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) Furthermore, a court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).)

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, “leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.’ [Citation.]” (Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174–1175.)

Meet and Confer

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

Similarly, “[b]efore filing a motion to strike ..., the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a).)

The Court finds that Defendant has satisfied the meet and confer requirement. (Demurrer, Declaration of Luis A Serrano, ¶¶ 3-8; Motion to Strike, Serrano Decl., ¶¶ 3-8.)

Demurrer

Defendants demur the COAs brought against them in the FAC, arguing that they fail to state facts sufficient to constitute a cause of action and are uncertain. In opposition, Plaintiff argues that the FAC has alleged sufficient facts.

Sixth COA: Trespass to Real Property

Defendants argue that Plaintiff fails to state a claim for trespass to real property because: (1) the FAC alleges she gave Defendants permission to enter her property and then pleads mere conclusions regarding revoking that permission; (2) the FAC has failed to plead unauthorized entry; (3) the FAC fails to plead damages because it does not allege physical injury to the apartment, repair costs, diminution in value, displacement, or loss of use caused by the alleged trespass; and (4) the allegation that Defendants remained after Plaintiff asked them to leave is conclusory.

“‘Trespass is an unlawful interference with possession of property.’ [Citation.] The elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm. (See CACI No. 2000.)” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 261–262.)

Contrary to Defendants’ arguments, the FAC has pleaded the first three elements adequately by alleging the following. Defendants are the parents of Defendant Ujwal Pratap, who assaulted and battered Plaintiff on September 8, 2023. (FAC, ¶¶ 3, 8.) After the assault, Defendants visited Plaintiff at the hospital, where they expressed their wish to help Plaintiff by bringing food, checking on her condition, cleaning her apartment, and feeding her cats during the immediate post-surgical period. (FAC, ¶ 9.) However, Plaintiff did not authorize Defendants to enter her apartment after her discharge from the hospital at a time of their own choosing. (FAC, ¶ 10.) Approximately two days after Plaintiff was discharged from the hospital, while Plaintiff was at home, confined to a wheelchair, medicated, and recovering from surgery, Plaintiff left her apartment door unlocked for an expected friend. (FAC, ¶ 11.) Instead, Defendants entered without Plaintiff’s consent and, once inside, they (among other things) confronted Plaintiff in her home, urged her not to report the assault, not to cooperate with law enforcement or prosecution, and not to pursue criminal or civil remedies against their son. (FAC, ¶ 12.) Plaintiff repeatedly refused Defendants’ offers to pay Plaintiff’s bills, told them to leave, and did not consent to their continued presence. (FAC, ¶ 12.) Nevertheless, Defendants remained in the apartment for more than an hour. (FAC, ¶ 12.)

Plaintiff has also pleaded the last two elements by alleging that Defendants “remained in [Plaintiff’s] apartment for more than an hour, causing Plaintiff severe emotional distress, including fear, panic, anxiety, crying, insomnia, and disruption of her convalescence.” (FAC, ¶ 12.) “In *Kornoff v. Kingsburg Cotton Oil Co.* (1955) 45 Cal.2d 265, 288 P.2d 507 (*Kornoff*), the California Supreme Court recognized that “an occupant of land” may recover damages for annoyance and discomfort that would naturally ensue’ from a trespass on the plaintiff’s land. (Id. at p. 272, 288 P.2d 507.)” (*Kelly v. CB&I Constructors, Inc.* (2009) 179 Cal.App.4th 442, 456, disapproved on other grounds by *Scholes v. Lambirth Trucking Co.* (2020) 8 Cal.5th 1094; see also *Kornoff*, supra, 45 Cal.2d at p. 275 [“The California cases appear to draw no distinction between cases involving nuisance and those involving trespass in permitting an award of damages for discomfort and annoyance directly resulting from an injury to real property. There seems to be no sound reason to refuse to award damages for discomfort and annoyance where the only injury is to the real property since it is obvious that such an injury may cause discomfort and annoyance without also causing an actual physical injury to the person”].) Therefore, Plaintiff was not required to plead physical injury to the apartment, repair costs, diminution in value, displacement, or loss of use caused by the alleged trespass. It is sufficient that she alleged discomfort from the alleged trespass.

Notwithstanding the above, the Court agrees with Defendants that Plaintiff's "trespass to real property" COA cannot be based on her allegation that Defendants moved, handled, altered, discarded, concealed, and/or removed her personal property without her consent. (FAC, ¶ 13.) Personal property is not real property.

However, because the FAC has otherwise pleaded trespass to real property based on the other allegations discussed above, that claim is sufficient.

Therefore, the demurrer to the sixth COA for trespass to real property is overruled.

Seventh COA: Conversion

Defendants argue that the conversion claim is uncertain because it fails to identify a specific property that was converted.

"Conversion is generally described as the wrongful exercise of dominion over the personal property of another." (Regent Alliance Ltd. v. Rabizadeh (2014) 231 Cal.App.4th 1177, 1181 [internal citations and quotation marks removed].) "The basic elements of the tort are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a manner that is inconsistent with the plaintiff's property rights; and (3) resulting damages. [Citation.]' [Citation.]" (Ibid.) "Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial.' [Citation.]" (Ibid.)

The Court agrees with Defendants that the conversion claim is uncertain. The FAC alleges in a conclusory manner the following. "At all relevant times, Plaintiff, owned, possessed, and/or had the immediate right to possess personal property located in her residence, including but not limited to documents, written notes and correspondence, photographs, digital storage media and devices, clothing, household effects, supplies, and other personal effects of value and significance to Plaintiff (collectively, the 'Converted Property')." (FAC, ¶ 59.) "Plaintiff is informed and believes, and on that basis alleges, that in connection with their unauthorized entry into Plaintiff's residence, Defendants intentionally and wrongfully exercised dominion and control over portions of the Converted Property by taking, removing, discarding, concealing, withholding, and/or otherwise disposing of such property without Plaintiff's knowledge, consent, or authorization." (FAC, ¶ 60.) "The Converted Property included items that were specifically identifiable and that Plaintiff owned or had the right to possess immediately. To the extent additional specific items are identified through inspection, discovery, or further investigation, Plaintiff will amend to conform to proof." (FAC, ¶ 61.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers "are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.) Here, the Court finds that the conversion claim is uncertain because it fails to specify which property Defendants allegedly converted and how they converted such property. Those missing allegations make the claim so incomprehensible that Defendants cannot reasonably respond to it. Plaintiff's opposition does not convince the Court otherwise.

Therefore, the demurrer to the seventh COA for conversion is sustained with leave to amend.

Eighth COA: Trespass to Chattels

"[T]he trespass to chattels tort ... may not, in California, be proved without evidence of an injury to the plaintiff's personal property or legal interest therein.' [Citation.] 'In modern American law generally, "[t]respass [to chattels] remains as an occasional remedy for minor interferences, resulting in some damage, but not sufficiently serious or sufficiently important to amount to the greater tort' of conversion.' [Citation.] '[I]njury to the personal property or the possessor's interest in it is an element of the action' [Citation.]" (Casillas v. Berkshire Hathaway Homestate Ins. Co. (2022) 79 Cal.App.5th 755, 762 [italics in original].)

As with the conversion claim, Plaintiff fails to identify the specific personal property that Defendants allegedly trespassed, making the trespass to chattels claim uncertain and insufficient. Plaintiff only alleges in a conclusory manner the following. "At all relevant times, Plaintiff owned, possessed, and/or had the immediate right to possess and use personal property located in her residence, including the categories of property described above (the 'Chattel Property')." (FAC, ¶ 69.) "In the course of their unauthorized entry into and presence within Plaintiff's residence, Defendants, without authorization, intentionally interfered with Plaintiff's Chattel Property by moving, handling, opening, disturbing, sorting, altering, misplacing, and/or otherwise intermeddling with such property." (FAC, ¶ 70.) Contrary to Plaintiff's arguments in the opposition, those facts are insufficient and uncertain with regard to the personal property that Defendants allegedly trespassed.

Therefore, the demurrer to the eighth COA for trespass of chattels is sustained with leave to amend.

Ninth COA: Violation of the Bane Act

Defendants contend Plaintiff's Bane Act claim fails because: (1) the FAC fails to allege threats, intimidation, or coercion; (2) the FAC fails to plead specific intent; (3) the FAC suggests insufficiency by alleging facts indicating Plaintiff's intent to find out facts relevant to the claim through discovery; (4) the allegations that Plaintiff was vulnerable at relevant times does not establish threats, intimidation, or coercion; (5) the FAC does not plead interference with any identified right; and (6) Plaintiff did not raise the Bane Act claim in her original Complaint despite knowing about Defendants' alleged misconduct in September 2023.

The Bane Act is codified under Civil Code section 52.1. (Civ. Code, § 52.1, subd. (a).) "The Legislature enacted [the statute] to stem a tide of hate crimes.' [Citation.] Civil Code section 52.1 requires 'an attempted or completed act of interference with a legal right, accompanied by a form of coercion.' [Citation.]" (Austin B. v. Escondido Union School Dist. (2007) 149 Cal.App.4th 860, 882 (Austin B.).)

The Act states: "If a person or persons, whether or not acting under color of law, interferes by threat, intimidation, or coercion, or attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws of this state, the Attorney General, or any district attorney or city attorney may bring a civil action for injunctive and other appropriate equitable relief in the name of the people of the State of California, in order to protect the peaceable exercise or enjoyment of the right or rights secured." (Civ. Code, § 52.1, subd. (b).)

"Any individual whose exercise or enjoyment of rights secured by the Constitution or laws of the United States, or of rights secured by the Constitution or laws of this state, has been interfered with, or attempted to be interfered with, as described in subdivision (b) [above], may institute and prosecute in their own name and on their own behalf a civil action for damages, including, but not limited to, damages under Section 52, injunctive relief, and other appropriate equitable relief to protect the peaceable exercise or enjoyment of the right or rights secured, including appropriate equitable and declaratory relief to eliminate a pattern or practice of conduct as described in subdivision (b)." (Civ. Code, § 52.1, subd. (c).)

"To obtain relief under Civil Code section 52.1, a plaintiff need not allege the defendant acted with discriminatory animus or intent; a defendant is liable if he or she interfered with the plaintiff's constitutional rights by the requisite threats, intimidation, or coercion." (Austin B., supra, 149 Cal.App.4th at p. 882; see also Shoyoye v. County of Los Angeles (2012) 203 Cal.App.4th 947, 956 ["Notably, the statute does not require a plaintiff to allege the defendant acted with discriminatory animus or intent based upon the plaintiff's membership in a protected class of persons"]; id. at p. 957 ["Indeed, section 52.1 was amended in 2000 to add language to subdivision (g) in order to clarify that the section applies to an affected plaintiff without regard to his or her membership in a protected class"].)

"The word 'interferes' as used in the Bane Act means 'violates.' [Citations.] The essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., 'threats, intimidation or coercion'), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law." (Austin B., supra, 149 Cal.App.4th at p. 883 [italics added].)

Here, the Court finds that, for the purposes of this demurrer, Plaintiff has alleged facts sufficient to constitute a violation of Bane Act claim by alleging the following, among other things. "At all relevant times, Plaintiff had rights secured by the Constitution and laws of the State of California and of the United States, including but not limited to, the right to report criminal conduct to law enforcement, the right to seek police protection and assistance, the right to cooperate with law enforcement and prosecutors, the right to participate truthfully in criminal proceedings, the right as a crime victim and percipient witness to provide information and testimony without interference, intimidation, or coercion, and the right to seek civil redress in court for personal injuries and related harm." (FAC, ¶ 77.) "[I]nside Plaintiff's home, Defendants intentionally confronted Plaintiff face-to-face and repeatedly urged, pressed, and importuned Plaintiff not to report the assault committed by their son, not to cooperate with law enforcement or prosecutors, not to participate in criminal proceedings arising from the assault, and not to pursue criminal charges or civil claims arising from the assault. In furtherance of that objection, Defendants offered to pay Plaintiff's bills and offered Plaintiff approximately \$10,000 if she would refrain from pressing charges and/or filing suit." (FAC, ¶ 79.) "Defendants' demands and monetary inducements were directed at Plaintiff because Plaintiff was the victim of the assault and a percipient witness to it, and were intended to deter, delay, or prevent Plaintiff from reporting the crime, cooperating with the law enforcement and prosecutors, providing truthful testimony, and pursuing civil redress." (FAC, ¶ 81.) Those facts are sufficient to establish coercion to interfere with Plaintiff's rights under the Constitution to (among other things) pursue with legal remedies against the alleged tortfeasor. Defendants appear to dispute the merits of the Bane Act claim, arguing that "[a] \$10,000 offer is not intimidation." (Demurrer, p. 10:27-28.) However, factual disputes cannot be resolved on a demurrer.

For those reasons, the demurrer to the ninth COA for violation of the Bane Act is overruled.

Motion to Strike

Courts may strike allegations that are "not essential to the statement of a claim or defense," "neither pertinent to nor supported by an otherwise sufficient claim or defense," or "[a] demand for judgment requesting relief not supported by the allegations." (Code Civ. Proc., § 431.10, subd. (b).)

Defendants move to strike the following in the FAC: "[1] Plaintiff's punitive-damages allegations and prayer, [2] attorney's-fee allegations and prayer, [3] equitable-relief allegations and prayer, and [4] inflammatory, conclusory,

irrelevant, and improper allegations against Defendants, including unsupported references to 'threats,' 'intimidation,' 'coercion,' 'bribe,' 'malice,' 'oppression,' 'fraud,' 'despicable' conduct, and similar labels unsupported by pleaded ultimate facts." (Motion to Strike, p. 2:7-12.)

Punitive Damages

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant [i.e., punitive damages]." (Civ. Code, § 3294, subd. (a).)

"As used in [the statute], the following definitions shall apply:

(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

(Civ. Code, § 3294, subd. (c).)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

"The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (citations omitted).) Allegations that merely plead the statutory phraseology are wholly insufficient to state a basis for recovery of punitive damages. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041.) Conclusory characterizations of defendant's conduct as willful, intentional, or fraudulent is a patently insufficient statement of the necessary factual grounds for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.)

Contrary to Plaintiff's arguments, the Court finds that she has not alleged facts constituting malice or oppression. As shown above, both of those theories require a plaintiff to plead that Defendants acted in "conscious disregard" of her rights. "Conscious disregard" means "that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." [Citation.] Put another way, the defendant must "have actual knowledge of the risk of harm it is creating and, in the face of that knowledge, fail to take steps it knows will reduce or eliminate the risk of harm." [Citation.] (King v. U.S. Bank National Assn. (2020) 53 Cal.App.5th 675, 711 [italics in original].) Here, the FAC alleges that Defendants trespassed Plaintiff's property when she was essentially helpless and proceeded to coerce her into agreeing to not exercise her rights to pursue legal remedies against their son. However, the FAC fails to plead that (1) Defendants had actual knowledge of the risk of harm they were creating to Plaintiff, and (2) that they proceeded to trespass Plaintiff's property and/or coerce or intimidate her despite that knowledge. Conclusory allegations are insufficient.

Therefore, the request to strike the punitive damages allegations is granted with leave to amend.

Attorney Fees

Attorney fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).)

Here, the Bane Act allows a plaintiff to recover attorney's fees, and the Court has overruled the demurrer to Plaintiff's violation of the Bane Act claim. (See Civ. Code, § 52.1, subd. (i) ["In addition to any damages, injunction, or other equitable relief awarded in an action brought pursuant to subdivision (c), the court may award the petitioner or plaintiff reasonable attorney's fees"].)

Therefore, the request to strike the request for attorney's fees is denied.

Equitable Relief

Defendants argue: "The FAC seeks equitable relief, including orders enjoining Defendants from contacting, harassing, intimidating, coercing, or interfering with Plaintiff's rights. That prayer should be stricken. The FAC alleges a single historical visit in September 2023. (FAC ¶¶ 9-13.) It does not allege ongoing contact, ongoing harassment, ongoing intimidation, ongoing coercion, ongoing property interference, or any real and immediate threat of future conduct by Sai or Anitha.

Equitable relief is not available based on conclusory fear or a stale, one-time alleged event.” (Motion to Strike, p. 6:18-23.)

As Plaintiff argues, the Bane Act allows Plaintiff to recover, “[i]n addition to any damages, injunction, or other equitable relief” (Civ. Code, § 52.1, subd. (i).)

Whether Plaintiff will ultimately be entitled to such relief presents a question of fact for the jury.

Therefore, the request to strike the request for equitable relief is denied.

Other Allegations

The Court denies Defendant’s request to strike so-called to strike “inflammatory, conclusory, irrelevant, and improper allegations against Defendants, including unsupported references to ‘threats,’ ‘intimidation,’ ‘coercion,’ ‘bribe,’ ‘malice,’ ‘oppression,’ ‘fraud,’ ‘despicable’ conduct, and similar labels” (Motion to Strike, p. 2:9-12.)

Conclusion

The demurrer is SUSTAINED IN PART and OVERRULED IN PART as follows. The demurrer to the seventh cause of action for conversion and eighth cause of action for trespass to chattels is SUSTAINED with leave to amend. The demurrer is otherwise OVERRULED.

The motion to strike is GRANTED IN PART and DENIED IN PART as follows. The request to strike the punitive damages allegations is GRANTED with leave to amend. The motion is otherwise DENIED.

Plaintiff is ordered to file and serve a Second Amended Complaint within 20 days of this ruling.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative ruling as the final order or take the matter off calendar at its discretion.